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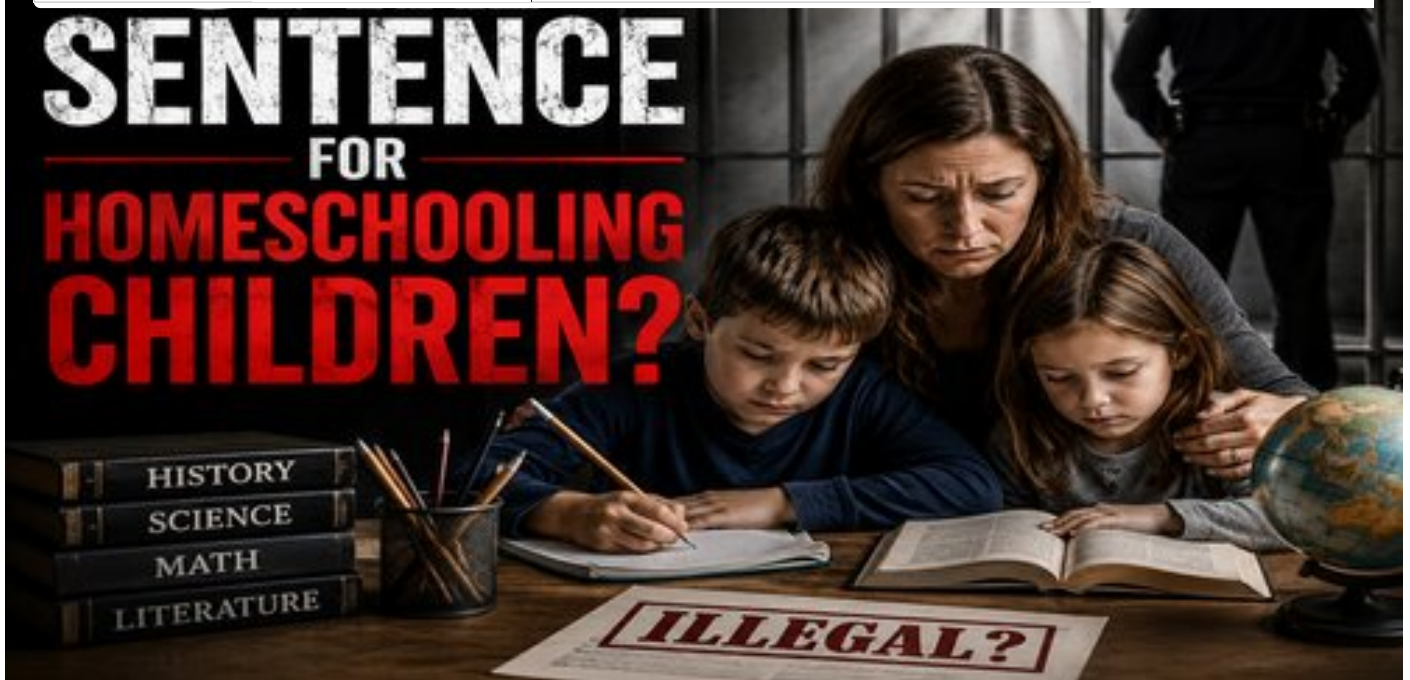
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ARTICLE

Jail Sentence For Homeschooling Children?



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BY JOSHUA ARNOLD/WASHINGTON STAND JUNE 19, 2026

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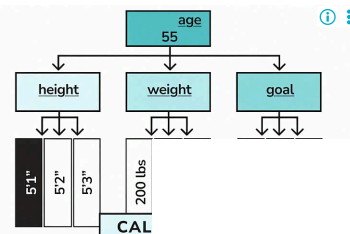
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Brazilian parents Audato and Ieda Denardi are appealing a lower court's ruling that sentenced them to 50 days in prison for homeschooling their daughters. Homeschooling has no clear legal framework in the nation and is often treated as an administrative offense, so the Denardis are the first parents in Brazil to face criminal conviction for homeschooling. The prison sentence handed down from a São Paulo court in April 2026 is suspended while ADF International appeals the ruling to the state's highest court.

The judge found the parents guilty of "intellectual neglect" because their home education curriculum lacked instruction on "gender and sex education" and "tolerance and diversity" to match the curriculum found in public schools. Apparently, the intellects of young Brazilians cannot develop properly unless subjected to transgender indoctrination and instruction that amounts to Marxist-infused racism.

The judge also found that the home curriculum failed to educate the girls (aged 15 and 11) in cultural diversity because they did not like "trap" or "sertanejo" (folk) music. Specifically, the "fifteen-year-old said she finds some music lyrics morally questionable," said Julio Pohl, ADF International legal counsel for Latin America. However, the girls could both play the piano and speak multiple languages, suggesting that they had a sort of cultural education -- just not the low-brow type the judge expected.

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The judge's verdict was even more outrageous as it came even after the prosecutor recommended acquittal. The judicial process involved testimony from witnesses and an evaluation of the girls' social and academic development, which convinced the prosecutor that the girls had not been neglected. The judge, however, was either not convinced by the same evidence that had persuaded the prosecutor or chose to pursue an ideological agenda with flagrant disregard for the evidence.

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"In ... it," ADF International explained. "Homeschooling parents have relied on international law to defend their right to direct the education of their children." However, "the lack of a federal law on the issue has left them in legal limbo and under constant threat of sanction." A homeschooling bill passed Brazil's lower legislative chamber in 2022 but stalled in the upper chamber.

ADF International estimates that more than 70,000 children are currently being homeschooled in Brazil.

This legal gray area laid the groundwork for the absurd ruling against the Denardis.

"The prosecutor examined the witnesses and recommended for acquittal. An independent educational psychologist found no sign of neglect. The girls themselves described rigorous daily education," Pohl proclaimed. "The judge convicted anyway -- because a fifteen-year-old said she finds some music lyrics morally questionable, and because the curriculum didn't include state-approved content on gender. A parent has been sentenced to prison not for failing to educate her children, but for educating them according to her own values."



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Indeed, the judge's left-wing ideology bleeds through in the opinion, which accuses the parents of "using their daughters as pawns in an ideological struggle, subjecting them to a form of unregulated education, the effectiveness and quality of which lack adequate metrics within the Brazilian legal system, while completely excluding the State's involvement."

How dare someone obtain an "unregulated education"? What right do parents have to raise their children "while completely excluding the State's involvement"?

The arrogant statism in these words is richer than a chocolate cheesecake. It channels the same attitude that Virginia gubernatorial candidate and Democrat Terry McAuliffe rode to defeat in 2021, when he declared, "I don't think parents should be telling schools what they should teach." The fact is, parents have a natural right to direct the education and upbringing of their children for the simple and unalterable reason that the children are their own. With few exceptions, parents will be more concerned about the welfare and future success of their children than any public functionary.



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 "targeted Christian homeschool parents who were federal employees with inspector general investigations, IRS referrals, and threats of criminal charges and disciplinary action."

Progressives love to claim that they are merely seeking the best interest of children and are trying to secure them against cases of parental abuse. There are cases of abuse disguised as "homeschooling," but these are both obvious and rare.

In a 2025 survey of adults aged 25-39, students who were educated at home for at least eight years reported the lowest levels of depression and anxiety, were the least likely to say they "feel helpless dealing with life's problems," and "exhibited the highest levels of optimism, gratitude, and life satisfaction." Long-term homeschoolers were 50% more likely than their counterparts to be married and half as likely to be divorced, and their average number of children was one-third higher.

When government officials pompously try to stamp out homeschooling, this is the type of social success they are trying to sabotage. What game are they playing? Are they trying to cover up the failures of their precious public school systems? Or simply trying to drag homeschoolers into their race to the bottom -- to create a society of shallow thinkers who are easily led?

The Denardi family's personal experience matched the statistics. After observing shortcomings in public education during the COVID-era days of forced learning-at-home, the Denardis gave homeschooling a try. When they made the switch, they saw significant improvement in their daughter's academic performance and appreciated the flexibility to incorporate religious and moral instruction, which should be present in any education but are often lacking in a public school setting.

"As a mother, I cannot conceive a more dictatorial state than the one that wants me in jail because I chose to exercise my right to direct the education and upbringing of my daughters," said Ieda Denardi. "My husband and I are hopeful the court will recognize our right to choose the best education for our children and overturn this unjust conviction."

Originally published at The Washington Stand (<https://washingtonstand.com/article/brazilian-parents-appeal-jail-sentence-for-homeschooling-daughters>)

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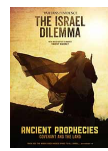


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